

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

SOTHEARITH CHANTY,

Petitioner

VS.

SIENNA ERIKA REYES DE MESA,

Respondent

) Case Number: FMS-25-387587

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: DONNA PETRE

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

**TENTATIVE RULING**

**The parties are ordered to appear to address the issues of Father's requested overnight visits with his son from Wednesdays to Thursday and Father's request to be allowed to take the child once a year for up to two weeks for a vacation to Cambodia. The parties may appear in person in Department 404 or remotely by Zoom Video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**

**At the hearing, the Court also intends to make the following findings and orders:**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) On January 30, 2026, the Petitioner/Father filed a Request for Order seeking Joint Legal and Physical Custody of the child Sebastian Singh De Mess Chanty (DOB 08/21/2019). He also seeks reasonable visitation with his son. The father alleges that in July 2025, the mother took the child and has stopped all contact with him and will not respond to him as to the whereabouts of his son.

- 1 2) On March 2, 2026, the parties were sent to mediation with a return date set for April 28, 2026.
- 2 3) On April 1, 2026, the Mother/Respondent filed a Responsive Declaration to the Father's Request
- 3 for Order. In this Declaration, the Mother request sole legal and physical custody of the minor
- 4 child and that the Father's visitation be every other Saturday from 10:00 a.m. to 6:00 p.m. Father
- 5 would also have phone calls with the child 2-3 times per week for 15 minutes. The Father is not
- 6 to consume alcohol 12 hours before or during any visits.
- 7 4) On April 21, 2026, the Petitioner/Father fled a Reply Declaration seeking joint legal and physical
- 8 custody of their son with visitation every Saturday from 10:00 to 6:00 p.m. and Wednesday
- 9 overnight visits from after school until Thursday morning at school. He agrees not to consume
- 10 alcohol during his parenting time with their son nor for 12 hours prior to any visits.
- 11 5) The Father alleges in his declaration that the Mother has allowed her boyfriend(s) to sleep with
- 12 the child and her in the same bed and that her brother threatened him to get his gun unless he
- 13 signed the consent for her to get a passport to take the child to the Philippines.
- 14 6) The parties attended mediation but were unable to reach an agreement on the issues of custody
- 15 and visitation. The arears for discussion include the following:
- 16 a. Father requests joint legal custody and joint physical custody of the minor child. Father
- 17 further requests a parenting schedule as follows:
- 18 i. Father to have the minor child every Wednesday, including
- 19 1. School drop off on Wednesday mornings. Father requesting to pick
- 20 minor child up in the morning from mothers home.
- 21 2. Overnight parenting time Wednesday evening after school
- 22 3. Drop-off at school on Thursday morning
- 23 ii. Mother to resume care by picking the child up from school on Thursday
- 24 Father also requests that Mother allow the minor child to travel with Father to Cambodia
- 25 once per year for up to two (2) weeks for vacation.
- 26 b. Mother requests sole legal custody and sole physical custody of the minor child. Mother
- 27 further requests that Father have parenting time with the minor child every other Saturday
- 28 from 10am-6pm.
- 29

1 **B. Findings and Order**

2 1) This court has jurisdiction to make child custody orders in this case under the Uniform Child  
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in  
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
5 child(ren) is the United States.

6 2) The court orders that the parties shall have joint legal and physical custody of their son.

7 3) The Father shall have parenting time with his son every Saturday from 10:00 am to 6 pm.

8 **4) The parties are ordered to appear to address the issues of Father's requested overnight**  
9 **visits with his son from Wednesdays to Thursday and Father's request to be allowed to take**  
10 **the child once a year for up to two weeks for a vacation to Cambodia. The parties may**  
11 **appear in person in Department 404 or remotely by Zoom Video. If a party chooses to**  
12 **appear by video, that party must abide by the Notice and Instructions for Remote**  
13 **Appearance in San Francisco Family Court set forth above.**